

gained coordinating pretrial proceedings. The court will grant consolidation to that extent, but the trials will be separate.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/18/26
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Laren Cyr Galpin v. Merced Hospice, Inc.**
Superior Court Case No. 24CECG04875

Hearing Date: September 24, 2026 (Dept. 501)

Motion: by Plaintiff to Quash the Subpoena for Production of Business Records to Sierra Pacific Orthopaedics and Zenith Insurance Company

Tentative Ruling:

To deny plaintiff's motions to the extent that she seeks to quash the business records subpoenas issued to Sierra Pacific Orthopaedics and Zenith Insurance Company in their entirety. To limit the subpoenas to those records pertaining to plaintiff's July 14, 2024 knee injury and subsequent restrictions. To deny defendant's request for sanctions.

Explanation:

Plaintiff Laren Cyr Galpin ("plaintiff") seeks to quash defendant Merced Hospice Inc.'s ("defendant") subpoenas seeking certain records from Sierra Pacific Orthopaedics and Zenith Insurance Company. Plaintiff submits that these records are overbroad and irrelevant or otherwise subject to the right of privacy. Accordingly, plaintiff seeks to quash the subpoenas in their entirety. Alternatively, plaintiff requests the court limit the subpoenas to records pertaining to plaintiff's July 14, 2024 knee injury.

A party is entitled to discover the information as long as it is reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) In accordance with the liberal policies underlying the discovery procedures, doubts as to relevance should generally be resolved in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173.) While discovery is broad, the right to discovery is not absolute. The California Constitution protects the individual's reasonable expectation of privacy against a serious invasion. (*Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 370.) A reasonable expectation of privacy is an objective entitlement founded on broadly based and widely accepted community norms. (*Hill v. Nat'l Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 37.) The invasion of privacy must be serious in nature, scope, and actual or potential impact to constitute an egregious breach of social norms. (*Ibid.*) If the invasion is serious, the invasion must be measured against legitimate and important competing interests. (*Id.* at p. 38.)

Specifically, the patient-physician privilege creates a zone of privacy whose purpose are (1) to preclude the humiliation of the patient that might follow disclosure of ailments and (2) to encourage the patient's full disclosure to the physician all of the information necessary for effective diagnosis and treatment of the patient. (Evid. Code, § 990, et seq.; *Board of Medical Quality Assurance v. Gherardini* (1979) 93 Cal.App.3d 669, 678-679, overruled on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531.) Thus, medical records fall within the protected ambit of the state Constitution right

to privacy. (*Board of Medical Quality Assurance v. Gherardini*, *supra* 93 Cal.App.3d at p. 679.) Even absent a statutory privilege, the constitutional privilege would be held to operate. (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.)

Where a party raises physical conditions as an issue in the case, he waives his right to claim that the relevant medical records are privileged. (*Vesco v. Superior Court* (2013) 221 Cal.App.4th 275, 279.) And, even if plaintiff has not waived the right to privacy, the court may still order production of the private information if defendant has made a showing that the information is directly relevant to the issues of the case, and the need to discover the information outweighs the plaintiff's right to keep the information private. (*Board of Medical Quality Assurance v. Gherardini*, *supra*, 93 Cal.App.3d at p. 680.) If discovery is allowed, however, it must be narrowly tailored to create the least intrusive invasion of privacy. (*Ibid.*)

Here, it appears that the subpoenas at issue are overbroad and violate plaintiff's constitutional right to privacy. (Cal. Const., Art. I, § 1; *Britt v. Superior Court (San Diego Unified Port Dist.)* (1978) 20 Cal.3d 844, 855, 856.) The subpoenas request "All documents and records pertaining to the care, treatment, and examination of [plaintiff] ... from January 1, 2016 to the present." (Khosrovian Decls., ¶¶ 6, 7; Exh. B.) Defendant does not justify the broad 10-year range of records sought.

In its opposition regarding the subpoena issued to Sierra Pacific Orthopaedics, Defendant submits a limitation to the subpoena as follows:

All nonprivileged records concerning Plaintiff's July 14, 2024 injury as it relates to her knee; Plaintiff's knee condition; evaluation or treatment relating to that condition; medical and work restrictions relating to Plaintiff's knee; functional-capacity and work-status determinations; return-to-work or full-duty releases; and any modification, continuation, reduction, or removal of restrictions relating to Plaintiff's knee condition. (Opp., 6:28, 7:1-6.)

In its opposition regarding the subpoena issued to Zenith Insurance Company, Defendant submits a limitation to the subpoena as follows:

All nonprivileged records concerning Plaintiff's July 14, 2024 injury; Plaintiff's knee condition; any preexisting knee condition bearing upon the nature, extent, duration, or restrictions associated with the condition asserted in this action; Plaintiff's medical and work restrictions relating to her knee; temporary or permanent disability and work-status determinations; return-to-work or full-duty releases; factual or recorded statements concerning Plaintiff's knee-related physical limitations or capacity to work; and benefit, wage-loss, or settlement records to the extent they reflect Plaintiff's claimed disability, restrictions, work status, or knee condition. (Opp., 7:15-24, emphasis added.)

The court is satisfied that the proposed limitation to the subpoena to Sierra Pacific Orthopaedics is narrowly tailored to the medical condition at issue in the complaint. Plaintiff's argument that the request for these records relating to her knee condition

